Azeem And 2 Others vs State Of U.P. And Another on 29 March, 2024

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:53910

Court No. - 90

Case :- APPLICATION U/S 482 No. - 47298 of 2023

Applicant :- Azeem And 2 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Mohammad Farooque Ansari

Counsel for Opposite Party :- G.A.

Hon'ble Vikram D. Chauhan,J.

1. Heard learned counsel for the applicants and learned AGA for the State.

2. This application under Section 482 Cr.P.C. has been filed by applicants for quashing the summoning order dated 28.3.2019 and entire proceedings of Case No.1612 of 2019 (State Vs. Azeem and others), under Sections 498A, 323, 504 IPC and Section 3/4 D.P. Act, 1961, P.S. Civil Lines, District Aligarh pending in the court of Chief Judicial Magistrate, Aligarh arising out of Case Crime No.278 of 2018, under Sections 498A, 307, 323, 504 IPC and Section 3/4 D.P. Act, 1961, P.S. Civil Lines, District Aligarh.

3. The applicants are husband, mother-in-law and sister-in-law. The present application is filed challenging the summoning order dated 28.3.2019 and entire criminal proceedings on the ground of territorial jurisdiction of court concerned.

4. Learned counsel for the applicants submits that entire incident has taken place at Bulandshahr at the matrimonial home of informant, who is wife. It is submitted that as per First Information Report, the allegations are to the effect that demand of dowry has been made at Bulandshar, which is matrimonial home of informant and she was subjected to cruelty at Bulandshahr and she was thrown out from the house of matrimonial home and she went to her parental home at Aligarh. It is further submitted that in the First Information Report as well as in the statement under Section 161 Cr.P.C., there are no allegations of any part of cause of action arisen at District Aligarh and as such, the criminal proceedings lodged at District Aligarh are not tenable and is without jurisdiction.

5. Learned counsel for the applicants has relied upon the judgment of Supreme Court in Rupali Devi Vs. State of Uttar Pradesh and others, AIR 2019 Supreme Court 1790 to submit that in the facts and circumstances of the case, the jurisdiction can vest with the parental home of wife if any part of cause of action has arisen at District Aligarh.

6. Learned AGA has opposed the application and submits that in view of law laid down by Supreme Court in Rupali Devi (supra), the First Information Report lodged by wife at District Aligarh would be tenable and the objection raised by applicants are not tenable.

7. It is to be seen that in normal circumstances, the jurisdiction for lodging of FIR and issuing summoning order would vest with the Court where the offence has committed. The Supreme Court in Rupali Devi Vs. State of Uttar Pradesh and others, AIR 2019 Supreme Court 1790 has observed as under:-

> "14. "Cruelty" which is the crux of the offence under Section 498A IPC is defined in Black's Law Dictionary to mean "The intentional and malicious infliction of mental or physical suffering on a living creature, esp. a human; abusive treatment; outrage (Abuse, inhuman treatment, indignity)". Cruelty can be both physical or mental cruelty. The impact on the mental health of the wife by overt acts on the part of the husband or his relatives; the mental stress and trauma of being driven away from the matrimonial home and her helplessness to go back to the same home for fear of being illtreated are aspects that cannot be ignored while understanding the meaning of the expression "cruelty" appearing in Section 498A of the Indian Penal Code. The emotional distress or psychological effect on the wife, if not the physical injury, is bound to continue to traumatize the wife even after she leaves the matrimonial home and takes shelter at the parental home. Even if the acts of physical cruelty committed in the matrimonial house may have ceased and such acts do not occur at the parental home, there can be no doubt that the mental trauma and the psychological distress cause by the acts of the husband including verbal exchanges, if any, that had compelled the wife to leave the matrimonial home and take shelter with her parents would continue to persist at the parental home. Mental cruelty borne out of physical cruelty or abusive and humiliating verbal exchanges would continue in the parental home even though there may not be any overt act of physical cruelty at such place.

> 15. The Protection of Women from Domestic Violence Act, as the object behind its enactment would indicate, is to provide a civil remedy to victims of domestic violence as against the remedy in criminal law which is what is provided under Section 498A of the Indian Penal Code. The definition of the Domestic Violence in the Protection of Women from Domestic Violence Act, 2005 contemplates harm or injuries that endanger the health, safety, life, limb or wellbeing, whether mental or physical, as well as emotional abuse. The said definition would certainly, for reasons stated above, have a close connection with Explanation A & B to Section 498A, Indian Penal Code which defines cruelty. The provisions contained in Section 498A of the Indian Penal Code, undoubtedly, encompasses both mental as well as the physical well-being of the wife. Even the silence of the wife may have an underlying element of an emotional distress and mental agony. Her sufferings at the parental home though may be directly attributable to commission of acts of cruelty by the husband at the matrimonial home would, undoubtedly, be the consequences of the acts committed at the matrimonial home. Such consequences, by itself, would amount to distinct offences committed at the parental home where she has taken shelter. The adverse effects on the mental health in the parental home though on account of the acts committed in the matrimonial home would, in our considered view, amount to commission of cruelty within the meaning of Section 498A at the parental home. The consequences of the cruelty committed at the matrimonial home results in repeated offences being committed at the parental home. This is the kind of offences contemplated under Section 179 Cr.P.C which would squarely be applicable to the present case as an answer to the question raised.
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> 16. We, therefore, hold that the courts at the place where the wife takes shelter after leaving or driven away from the matrimonial home on account of acts of cruelty committed by the husband or his relatives, would, dependent on the factual situation, also have jurisdiction to entertain a complaint alleging commission of offences under Section 498A of the Indian Penal Code."

8. It is to be seen that as per judgment of Supreme Court, it has been recorded in para 14 that once the wife leaves her matrimonial home and goes to the parental home, psychological effect, cruelty and emotional distress are apparent. The mental cruelty which is borne out of physical cruelty extended by husband and his family members would continue in the parental home even though there may not be any overt act of physical cruelty at such place.

9. The judgement of Supreme Court is very clear on the point. The cruelty is alleged to have taken place at District Bulandshahr and the wife was thrown out of the house and she has reached her parental home as per allegation and as per judgment of Supreme Court in Rupali Devi (supra), the metal cruelty would continue at her parental home.

10. In view of judgment of Supreme Court in Rupali Devi (supra), the objection raised by applicants with regard to territorial jurisdiction is not tenable and is liable to be dismissed.

11. Accordingly, the present application under Section 482 Cr.P.C. is dismissed.

Order Date :- 29.3.2024 D. Tamang